

Shri Sanjay Kumar Bharadwaj vs Rajni Bharadwaj on 22 November, 2023

Author: Sanjay Dwivedi

Bench: Sanjay Dwivedi

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR

BEFORE
HON'BLE SHRI JUSTICE SANJAY DWIVEDI
ON THE 22 nd OF NOVEMBER, 2023
MISC. PETITION No. 3768 of 2023

BETWEEN: -

SHRI SANJAY KUMAR BHARADWAJ S/O LATE BHARAT
KUMAR BHARADWAJ, AGED ABOUT 58 YEARS,
OCCUPATION: SERVICE RESIDENT OF FLAT NO 202
V I J AY APARTMENT 1589 NAPIER TOWN DISTRICT
JABALPUR (MADHYA PRADESH)

.....PETITIONER

(BY SHRI ABHIJEET AWASTHI - ADVOCATE)

AND

RAJNI BHARADWAJ D/O MUNNALAL TIWARI, AGED
ABOUT 50 YEARS, OCCUPATION: UNEMPLOYED, W/O
S H R I SANJAY KUMAR BHARADWAJ RESIDENT OF
HOUSE NO 92/2 RAJENDRA PRASAD WARD IN FRONT
OF HANUMAN MANDIR DAMOHNKA SQUARE
DISTRICT JABALPUR (MADHYA PRADESH)

.....RESPONDENTS

(BY SHRI J.L. SONI - ADVOCATE)

This petition coming on for admission this day, th e court passed the
following:

ORDER

By this petition filed under Article 227 of the Constitution of India, the petitioner is questioning the validity of the order dated 18.05.2023 (Annexure P/7) passed in MJC-R No. 759/2021 pending before III Additional Principal Judge, Family Court, Jabalpur.

As per the facts of the case, on 06.12.2004 an award was passed in favour of respondent on an application preferred by her under Section 125 of Cr.P.C.. Thereafter, on an application preferred by the petitioner under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955, decree of divorce was

granted in favour of the petitioner on 24.08.2001 and since then petitioner and respondent are living separately. The petitioner is paying the amount of maintenance to the respondent granted under Section 125 Cr.P.C. Thereafter, an application has been moved by the respondent under Section 127 of Cr.P.C. for enhancement of maintenance awarded under Section 125 of Cr.P.C. and that application is pending since December, 2021. In the said pending proceeding, the petitioner has moved an application under Order 13 Rule 10 of the Code of Civil Procedure, 1908 for calling of the records of maintenance proceeding of Section 125 of Cr.P.C. in which the award was passed in favour of respondent and that application has been rejected by the Family Court, Jabalpur vide order dated 18.05.2023 (Annexure P/7).

Shri Soni appearing for the respondent submits that he has no objection if application under Order 13 Rule 10 CPC is allowed and record of proceeding of Section 125 of Cr.P.C. is called but simultaneously he submits that appropriate direction may be issued to the Family Court for deciding the application preferred by respondent under Section 127 of Cr.P.C.

Shri Awasthi, on the other hand, opposes the said submission of Shri Soni and submits that the application under Section 127 of Cr.P.C. has been filed by the respondent just to harass the petitioner and there is no need of enhancing the amount of maintenance awarded because the respondent is economically very sound, her son is earning a handsome amount every month and even otherwise the application for enhancement has been filed after almost 17 years and therefore there is no urgency in the matter and direction in a petition preferred by the petitioner should not be given in favour of respondent.

Considering the submission made by the learned counsel for the parties and the undertaking given by the counsel for the respondent, this petition is allowed setting aside the order dated 18.05.2023 (Annexure P/7) whereby the Family Court rejected the application preferred by the petitioner under Order 13 Rule 10 CPC. The Family Court, Jabalpur is directed to call the record as has been claimed by the petitioner/husband in the pending proceeding. However, it is expected that the proceeding pending before the Family Court, Jabalpur shall be concluded/decided expeditiously. It is not proper for this Court to direct the Family Court to decide the case within a specific time because such practice is deprecated by the Supreme Court and as such I am not inclined to issue any such direction.

With the aforesaid, this petition is allowed.

(SANJAY DWIVEDI) JUDGE RAGHVENDRA RAGHVENDRA SHARAN SHUKLA 2023.11.23
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